

TENTATIVE RULINGS

FOR: September 23, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

In The Matter of Karen K. Carson Revocable Trust

26PR000040

[1] RESPONDENT SUSANNAH G. CARSON’S DEMURRER TO PETITIONER’S
SECOND AMENDED PETITION

TENTATIVE RULING: The demurrer is SUSTAINED WITHOUT LEAVE TO
AMEND.

Respondent Susannah G. Carson demurs, pursuant to California Code of Civil Procedure section 430.10, subdivisions (e) and (f), both generally and specially to the Petitioner’s Second

Amended Petition (SAP) filed with this Court on May 19, 2026, by Petitioner John P. Lowney, III.¹

A. PROCEDURAL BACKGROUND

Mr. Lowney commenced the instant action by filing, on February 19, 2026, a petition for orders: (1) invalidating a trust amendment based on lack of capacity, undue influence, and fraud; (2) removing Susannah G. Carson as Trustee; (3) cancelling the subject instrument; and (4) determining title to trust assets.

It appears uncontroverted that the subject trust (Trust) was an estate planning vehicle for decedent Karen K. Carson (Decedent), and that Decedent was survived by three children: Mr. Lowney, Respondent Susannah Carson, and Katherine K. Sukla. Pursuant to the allegations of the Petition, Mr. Lowry lived with, and served as Decedent's primary caregiver from June 29, 2019 through December 2024. (See *id.* at ¶ 4.) At that time, Susannah Carson removed Mr. Lowney from the residence and took over caretaking duties. (See *id.* at ¶ 5.) In January 2025, Decedent executed a trust restatement that disinherited Mr. Lowney and Ms. Sukla. (See *id.* at ¶ 6.) The gravamen of the Petition was that the restatement was the product of undue influence on Decedent by Susannah Carson.

On March 23, 2026, Susannah G. Carson demurred to the Petition arguing that each cause of action was time barred, pursuant to Probate Code section 16061.8, based on the assertion that "co-counsel of record for Respondent, Lori Hunt, served all heirs, including but not limited to, Petitioner John P. Lowney a valid, timely and complete 'Notification by Trustee' on April 5, 2025, disclosing a true and complete copy of the Trust." (Support Memorandum filed in support of Demurrer at 7:7-10.)

On April 14, 2026, Petitioner filed an opposition to the demurrer. However, on April 15, 2026, Petitioner filed an Amended Petition.

By Minute Order of May 6, 2026 (5/6 M.O.), the Court directed the Clerk to strike the Amended Petition on grounds that it was filed without leave of Court.

That Minute Order also addressed the then-pending demurrer. It provides, in part, as follows.

The matter came on originally for hearing on April 28, 2026. Attorneys David Balter and Nicholas Conti appeared on behalf of Respondent, and attorney Kevin Snyder appeared on behalf of Petitioner. At the hearing, Petitioner and Respondent stipulated to the fact that, on April 5, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 1 to the

¹ Through the Support Memorandum, Respondent asks the Court to make a finding that the SAP "triggers the Trust's no-contest clause." The Court does not find that this issue is properly raised by the Notice of Demurrer and Demurrer. (See Code Civ. Proc. §1010 ["the notice of a motion, other than for a new trial, must state...the grounds upon which it will be made"]; see also Rules of Court, Rule 3.1110 ["[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"].)

Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto, and that, on April 21, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 2 to the Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto. (See Minute order of April 28, 2026.)

The Court finds that the stipulation constitutes a judicial admission of the fact of the service of the Notices by Trustee Pursuant to Probate Code Section 16061.7. (See *Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264, 1271 [held: a judicial admission is “a waiver of proof of a fact by conceding its truth, and it has the effect of removing the matter from the issues”]; see also *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451 (*Barsegian*), [‘Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission’].) ‘Facts established by pleadings as judicial admissions “are conclusive concessions of the truth of those matters, are effectively removed as issues from the litigation, and may not be contradicted, by the party whose pleadings are used against him or her.” (Ibid.)’

Based on that judicial admission, the Court sustained the demurrer. “Reviewing the substance of the Petition and its practical effect, the Court concludes that it is an action challenging the validity of a trust, and is therefore subject to the limitations of Probate Code section 16061.8. The Petition was filed February 19, 2026, more than 120 days from and after April 5, 2025, and is therefore barred pursuant to that statute.” (5/6 M.O.) However, the Court granted Mr. Lowrey 10 calendar days’ leave, from Notice of Entry of Order, to amend the Petition, “to state claims relating to undue influence, fraud, and breach of fiduciary duties, that do not, in substance and/or practical effect, constitute an attack on the validity of the Trust Amendment.” (*Ibid.*) Susannah Carson served and filed a Notice of Entry of Order on May 6, 2026.

The Court then granted Petitioner “10 calendar days from entry of the instant Order to file an amended petition as discussed below.” (5/6 M.O.)

On May 19, 2026, some 13 days after entry of the 5/6 M.O., Mr. Lowrey filed the Second Amended Petition (SAP). The instant demurrer followed.

B. NATURE OF CLAIMS AND DEMURRER

The SAP purports to assert claims for reformation of the Trust based on mistake of the settlor (Reformation Claim), and prays the Court to remove the Trustee for breach of fiduciary duty and to compel an accounting.

Ms. Carson contends that each of the claims are time barred and that the SAP fails to allege facts sufficient to state any claim. Ms. Carson further contends that the Reformation Claim is vague and ambiguous.

C. ANALYSIS

1. The SAP Was Not Timely Filed

As noted above, Petitioner failed to file the SAP within the 10 days' leave that the Court granted for doing so. The SAP is, therefore, subject to being stricken pursuant to Code of Civil Procedure, section 436, subdivision (b).

However, the Court finds that judicial economy is served by addressing the substantive arguments advanced by Respondent through the demurrer.

2. The Reformation Claim is Time Barred

“A person upon whom the notification by the trustee is served pursuant to paragraph (1) of subdivision (a) of Section 16061.7 . . . shall not bring an action to contest the trust more than 120 days from the date the notification by the trustee is served upon the person, or 60 days from the date on which a copy of the terms of the trust is delivered pursuant to Section 1215 to the person during that 120-day period, whichever is later.” (Prob. Code, § 16061.8.) “Actions that challenge the validity of a trust are actions that ‘contest the trust’ under section 16061.8. [Citation.] We are ‘not bound by its label’ in deciding whether an action is a trust contest. [Citation.] Rather, we ‘look to the substance of that [action] and its “practical effect.”’ [Citations.]” (*Hamilton v. Green* (2023) 98 Cal.App.5th 417, 424.)

Reviewing the substance of the SAP and its practical effect, the Court concludes that the Reformation Claim constitutes an action challenging the validity of the Trust, and is, based on the April 28, 2026, stipulation of counsel, and the analysis and ruling regarding judicial admission in the 5/6 M.O., barred by limitations period of Probate Code section 16061.8. The original Petition was filed February 19, 2026, more than 120 days from and after April 5, 2025, and is therefore time barred pursuant to that statute.

The Court finds that, based on the allegations of the SAP supporting the Reformation Claim, the holding in *Hamilton v. Green* (2023) 98 Cal.App.5th 417 (*Hamilton*) controls. As in *Hamilton*, the practical effect of the SAP is “to challenge the validity of the trust amendment to establish the pre-amendment trust should govern.” (*Id.* at 424.) The Reformation Claim “would require the [Court] to determine the validity of the trust amendment.” (*Id.* at 425.) “Although the prayer for relief does not expressly ask the court to invalidate the trust amendment, without a finding that the trust amendment was invalid, [Petitioner would have] no interest in the trust, and [would not be] entitled to the relief . . . sought.” (*Ibid.*) Based on the foregoing, the Court concludes that the Reformation Claim is “an ‘action to contest the trust’ pursuant to section 16061.8.” (*Ibid.*)

Based on the foregoing, the demurrer is SUSTAINED as to the Reformation Claim.

3. Petitioner Lacks Standing to Petition for Either Removal of the Trustee or an Accounting

The remainder of Petitioner's claims seek to enforce Petitioner's rights as a beneficiary of the Trust. (See, generally, SAP at ¶¶ 3, 24-43.)

“We begin with the general observation that standing for purposes of the Probate Code is a fluid concept dependent on the nature of the proceeding before the trial court and the parties' relationship to the proceeding, as well as to the trust (or estate). In general, [t]o have standing, a party must be beneficially interested in the controversy, and have some special interest to be served or some particular right to be preserved or protected. This interest must be concrete and actual, and must not be conjectural or hypothetical. . . . [T]he probate court has flexibility in determining whether to permit a party to participate as an interested party and may give standing to anyone having an interest in an estate which may be affected by a probate proceeding.” (*Hamlin v. Jendayi* (2024) 105 Cal.App.5th 1064, 1074. Internal quotes and citations omitted.)

The Court agrees with Respondent that, as Petitioner's Reformation Claim is time barred, Petitioner lacks standing to Petition the Court for an order removing the Trustee or compelling an accounting of the trust.

Petitioner alleges / asserts that he “is the natural son of Decedent and an heir at law. He has standing to bring this petition under California Probate Code section 17200 as a person interested in the Trust and an heir of the Decedent.” (SAP at ¶ 4.) Section 17200, subdivision (a), however, provides that, with exceptions having no apparent relevance here, “a trustee or beneficiary of a trust may petition the court under this chapter concerning the internal affairs of the trust or to determine the existence of the trust.”

Petitioner alleges that “The January 2025 Restatement, on its face, purports to omit Petitioner and Katherine K. Sukla as beneficiaries and to name Respondent as the sole residuary beneficiary and as successor Trustee.” (SAP at ¶ 14.) Based on the this allegation, Petitioner is not a beneficiary of the Trust. As his claim seeking to invalidate the January 2025 Restatement is time barred, he is not beneficially interested in the internal affairs of the Trust sufficient to Petition the Court either for an accounting or the removal of the Trustee.

4. Leave to Amend

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*) Here, the burden is on Petitioner to show in what manner he can amend the SAP, and how that amendment will change the legal effect of the pleading. (*Ibid.*; *Medina v. Safe Guard Products* (2008) 164 Cal.App.4th 105, 112 n.8; see also *Heritage Pac. Fin'l, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].)

Petitioner asserts that “Petitioner can amend, if necessary, to identify more specifically the provisions to be reformed . . .” (Opposition at 8:13.)

The Court isn’t persuaded that more specifically identifying the provisions to be performed will remove the Reformation Claim from the scope of the limitations statute.

To the extent that Petitioner suggests that he can state a good claim by reducing the scope of the provisions of the Trust that he seeks reformation of, the Court finds that Petitioner is in a Catch-22. As noted above, Petitioner’s standing to seek the Court’s intervention in Trust matters, pursuant to Probate Code section 17200, including by reformation, requires allegations challenging the validity of the January 29, 2025, Restatement of the Trust. As further discussed above, however, he is time-barred from challenging the validity of the January 29, 2025, Restatement of the Trust. In this context, there appears, to the Court, no reasonable possibility that he can amend the SAP to state a claim.

[1] RESPONDENT SUSANNAH G. CARSON’S MOTION FOR SANCTIONS (filed July 13, 2026)

[2] RESPONDENT SUSANNAH G. CARSON’S MOTION FOR SANCTIONS (filed August 3, 2026)

TENTATIVE RULING: The motions are each DENIED.

On July 13, 2026, Respondent Susannah G. Carson filed a motion, pursuant to California Code of Civil Procedure section 128.7 (Section 128.7), for an order imposing monetary sanctions, in the form of reasonable attorney’s fees and costs, against Petitioner John P. Lowney, III and his attorney Kevin R. Snyder, jointly and severally, in the amount of \$15,896.50. Ms. Carson so moves “on the grounds that Petitioner and his attorney filed his May 19, 2026, Second Amended Petition for Orders for an improper purpose.” (Notice of Motion at 2:23-25.)

On August 3, 2026, Ms. Carson filed a second motion for sanctions, pursuant to Section 128.7, in the amount of \$1,927.50 “on the grounds that Petitioner and his attorney filed his May 19, 2026 Second Amended Petition for Orders for an improper purpose and failed to file a notice of hearing of the continued Petition Hearing in conformity with this Court’s June 17, 2026 order.” (Notice of Motion at 2:23-26.)

Code of Civil Procedure section 128.7, subdivision (b), provides, in part, that “[b]y presenting to the court, . . . , a pleading, . . . an attorney or unrepresented party is certifying that to the best of the person’s knowledge, information, and belief, formed after an inquiry reasonable under the circumstances [that] . . . [i]t is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.” If the Court finds that Code of Civil Procedure section 128.7, subd. (b) has been violated, it may award sanctions so long as the sanctions are “limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated.” (Code of Civil Procedure section 128.7, subd. (d).)

Ms. Carson argues that the SAP is frivolous because it was filed “after the Court-ordered 10-day period had expired, [and] because it still seeks to effectively invalidate the Trust based on lack of capacity and undue influence.” (See Support Memo at 8:7-9.) She asserts that “all of Petitioner’s causes of action in the SAP attack the validity of the Trust and are thus time-barred under Probate Code section 16061.8 . . .” (*Id.* at 8:13-16.) Ms. Carson further complains of counsels repeated failure to serve notice of hearings on the operative petitions.

The Court is certainly sympathetic to Ms. Carson’s frustrations regarding Petitioner’s repeated failures to timely file pleadings, and to timely notice hearings. However, in assessing requests for sanctions pursuant to Code of Civil Procedure section 128.7, the Court is guided by Hanlon’s Razor: Never assume someone acted with malice when their actions can be explained by carelessness, incompetence, or a mistake.

That guidance is controlling here. While it is certainly conceivable that the repeated delays and unsuccessful pleadings *could* be evidence that Petitioner has been litigating with an improper purpose, they do not compel such a finding; they could, instead, be the product of zealous advocacy and lack of care.

Based on the foregoing, the Motions are, each, DENIED.

.....

Conservatorship of Deirdre Combs

26PR000101

[1] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

[2] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

APPEARANCE REQUIRED

.....

Estate of Brian Joseph Kosi

26PR000163

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED IN PART.

Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on September 23, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.